

**CHAPTER cvi.**

An Act to empower the London County Council to construct and work new tramways to alter and reconstruct existing tramways and to make street improvements and other works and for other purposes.

A.D. 1912.

[7th August 1912.]

WHEREAS it is expedient that the London County Council (in this Act referred to as "the Council") should be empowered to construct and maintain the new tramways and to alter reconstruct and maintain the existing tramways described in this Act:

And whereas it is expedient that provisions should be made as herein-after set forth with respect to the use and working of such tramways and that such further powers should be conferred upon the Council as are herein-after set forth:

And whereas it is expedient to confer on the Council powers to make the street improvements widenings and works and to acquire the lands herein-after described for the purposes herein-after specified:

And whereas it is also expedient to confer upon the Council in connexion with and for the purposes of the tramways and improvements by this Act authorised and otherwise in connexion with their tramway undertaking the powers herein-after set forth:

And whereas it is expedient that provision should be made empowering the councils of metropolitan boroughs to contribute towards the costs and expenses of the Council in relation to the improvements in this Act mentioned:

And whereas it is expedient to confer on the Council such powers as are herein-after set forth with regard to the raising of money for the purposes of this Act:

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And whereas estimates have been prepared by the Council as to the amount which they will require to expend on capital account for the purposes of this Act and such estimates (being in each case calculated to cover the original cost of purchasing lands and executing the works without any allowance in respect of returns from resale or letting of lands which will be ultimately available for that purpose or from contributions by metropolitan borough councils) are as follows:—

For the construction and equipment of new tramways the reconstruction of existing tramways and the purchase of lands therefor and for other purposes of the tramway undertaking -	£ 111,510
For the street improvements widenings and works connected therewith and for purchase of lands therefor -	127,055
Total	<u>£238,565</u>

And whereas the Council have caused to be deposited with the clerk of the peace for the county of London plans and sections describing the lines and levels of the tramways and works by this Act authorised and the lands which may be taken for the purposes thereof or otherwise under the powers of this Act and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands and such plans sections and book of reference are respectively referred to in this Act as the deposited plans sections and book of reference:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the London County Council (Tramways and Improvements) Act 1912.

Act divided into Parts.

2. This Act is divided into Parts as follows (namely):—

Part I.—Preliminary.

Part II.—Tramways.

Part III.—Street Works.

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Part IV.—Purchase of Lands.

Part V.—Miscellaneous and Financial.

3. The following Acts and parts of Acts (that is to say):— Incorporation of Acts.
 The Lands Clauses Acts; and
 Section 3 (Interpretation of terms) and Parts II. and III.
 of the Tramways Act 1870;

as far as the same are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with and form part of this Act:

Provided that sections 127 and 133 of the Lands Clauses Consolidation Act 1845 shall not apply in the case of any lands purchased by the Council under the powers of this Act:

Provided also that notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 any claim for compensation under this Act or any Act incorporated herewith by any person having or in respect of any interest in the lands in respect of which compensation is claimed not greater than that of a lessee or tenant for any term of which not more than eighteen months remain unexpired at the time when the claim is made shall be determined by justices in the manner provided by section 121 of the Lands Clauses Consolidation Act 1845.

4. In this Act unless the subject or context otherwise requires— Interpretation.

“The Council” means the London County Council;

“The county” means the administrative county of London;

“The new tramways” means the tramways by this Act authorised and any part thereof;

“The reconstructed tramways” means the tramways which may be reconstructed under this Act and any part thereof;

“The tramways” means the new tramways and the reconstructed tramways and any part thereof;

“The improvements” means the street improvements and the widenings by this Act authorised and any part thereof;

“The works” means the tramways and the improvements;

“Street” has the meaning assigned to that term in the Metropolis Management Acts 1855 to 1893:

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Terms to which meanings are assigned by enactments incorporated with this Act or which have therein special meanings have in this Act and for the purposes of this Act the same respective meanings:

Provided that for the purposes of this Act the expressions "the promoters of the undertaking" and "the company" in the Lands Clauses Acts shall be construed to mean the Council.

PART II.

TRAMWAYS.

Power to
make new
tramways.

5. Subject to the provisions of this Act the Council may make form lay down and maintain the new tramways herein-after described in the lines and according to the levels shown on the deposited plans and sections with all such rails plates sleepers junctions turntables turnovers crossings passing-places works and conveniences connected therewith as may be necessary or proper therefor.

The new tramways herein-before referred to and authorised by this Act are—

Tramway No. 5 (double line 2 furlongs 0·75 chain or thereabouts in length) commencing by a junction with the existing tramway in Shoreditch High Street at a point opposite the northern side of Fleur de Lis Street passing thence along Shoreditch High Street Norton Folgate and Bishopsgate and terminating in Bishopsgate at a point opposite the northern side of Middlesex Street:

Tramway No. 5 will be made or pass in through or into the following parishes and places or some of them The liberty of Norton Folgate in the metropolitan borough of Stepney the parish of St. Leonard Shoreditch in the metropolitan borough of Shoreditch and in the county and parish of the city of London.

Tramway No. 6 (1 furlong 4·45 chains or thereabouts in length whereof 1 furlong 3·05 chains or thereabouts will be double line and 1·4 chains or thereabouts will be single line) wholly in the parish and metropolitan borough of Bermondsey commencing in Tooley Street at a point opposite Joiner Street passing thence along Tooley Street and terminating in that street by a junction with the existing tramway at a point 1 chain or thereabouts westward of the junction of Tooley Street with Morgan's Lane.

Tramway No. 7 (double line 1 mile 3 furlongs or thereabouts in length) wholly in the parish and metropolitan borough of Lewisham commencing by a junction with the existing tramway in Rushey Green at a point $\frac{1}{2}$ chain or thereabouts south of the junction of Springfield Park Crescent with Rushey Green passing thence along Bromley Road as intended to be widened and improved and terminating in that thoroughfare at a point opposite the northern side of Beckenham Lane. A.D. 1912.

Tramway No. 8 (single line 8·5 chains or thereabouts in length) wholly in the parish of St. Mary Lambeth in the metropolitan borough of Lambeth commencing in South Lambeth Road Wandsworth Road and Vauxhall Cross or one of them by a junction with the existing tramway at a point $2\frac{1}{2}$ chains or thereabouts southward of the intersection of the tram lines leading from Vauxhall Bridge with the tram lines leading from the Albert Embankment passing thence along South Lambeth Road and terminating in that thoroughfare at a point opposite the southern side of Archer Street.

6. Subject to the provisions of this Act the Council may reconstruct (which expression where used in this Act includes the substitution of a double line of tramway for an existing single line and the laying of the reconstructed tramway in a different position in the street from that occupied by the existing tramway and the widening of the gauge of an existing tramway) in the lines and according to the levels shown on the deposited plans and sections the tramway herein-after described :—

Reconstruction of existing tramway.

The tramway in George Street Church Street Dock Yard Rails and High Street Woolwich.

The said tramway when reconstructed will be situate in the parish of Woolwich and will be 4 furlongs 2·1 chains or thereabouts in length whereof 3 furlongs 9·55 chains or thereabouts will be double line and 2·55 chains or thereabouts will be single line.

7. The carriages used on the tramways may be moved by animal power or (subject to the provisions of this Act) by electrical power. Motive power.

8. Nothing in this Act shall authorise the Council to place in any metropolitan borough any posts or wires in on or over Overhead system not to be applied

A.D. 1912. any street for working the tramways by electrical power unless
without con- the council of such metropolitan borough shall by resolution
sent of road have consented to the adoption therein of a system of traction
authority. conducted by means of posts and wires placed overhead.

Such consent may be subject to any limitations or conditions which may be expressed in the resolution and may apply to any particular streets or roads or fix any limited period defined by such resolution.

A copy of such resolution under the seal of the council of such metropolitan borough shall be delivered to the Council and shall be evidence of the due passing of such resolution.

Provided that no posts shall be placed in the centre of any road for the purpose of working any of the tramways by a system of traction conducted by means of posts and wires placed overhead without the consent of the Commissioner of Police of the Metropolis which consent shall not be unreasonably withheld.

Gauge of
tramways.

9. The tramways shall be of the gauge of four feet eight and a half inches but carriages or trucks adapted for use upon railways shall not be run upon the tramways.

Incorpora-
ting provi-
sions of Lon-
don County
Tramways
(Electrical
Power) Act
1900 with
this Part of
Act.

10. The sections of the London County Tramways (Electrical Power) Act 1900 of which the numbers and marginal notes are set forth in the First Schedule to this Act are hereby incorporated with and form part of this Part of this Act and shall extend and apply to the tramways and to the Council in respect thereof as fully and effectually as if those sections had been re-enacted in this Act with reference thereto.

Certain parts
of tramways
not to be
used until
streets
widened.

11. Where in any part of any street or road (not being a part of a street or road described in the Second Schedule to this Act) which is by this Act authorised to be widened and in which the Council are by this Act authorised to make a new tramway or to reconstruct an existing tramway a less space than nine feet six inches would for a distance of thirty feet or upwards intervene between the outside of the footpath and the nearest rail of the tramway the Council shall not work or use such tramway in such part of such street or road unless and until such part has been widened to such extent as may be necessary to leave a space of not less than nine feet six inches

between the outside of the footpath and the nearest rail of the tramway on the side of the street or road on which such widening is to be made or unless it appears from the deposited plans that such tramway is intended to be so made or reconstructed in such part of the street or road that a less space than nine feet six inches will intervene between the outside of the footpath and the nearest rail of the tramway. A.D. 1912.

12. The tramways shall for the purpose of fixing and defining the tolls and charges to be levied and made in respect thereof be deemed to form part of the tramway undertaking of the Council. Tolls &c.

13. The Commissioner of Police of the Metropolis may affix to tramway standards erected by the Council under this Act any notice required for the purposes of the Metropolitan Streets Acts or the Metropolitan Public Carriage Acts which the Commissioner is authorised by those Acts to attach to lamp-posts Provided that the Commissioner shall give notice in writing to the Council of his desire to affix any such notice and shall make compensation to the Council for any damage or injury which may result to the Council or their property by the affixing of any such notice Nothing in this section shall be deemed to require the Council to retain any tramway standard when no longer required for the purposes of the Council. Commis-
sioner of
Police may
affix notices
to standards.

14. The Council shall not work or use Tramway No. 6 between the hours of half-past nine o'clock in the morning and half-past five o'clock in the afternoon of any week day (not being a Saturday Christmas Day Good Friday or a Bank or public holiday) nor between the hours of half-past nine o'clock in the morning and twelve o'clock noon on any Saturday. Limiting
user of
Tramway
No. 6.

15.—(1) Nothing in this Act contained shall authorise the Council to enter upon use or interfere with any land soil or water or any right in respect thereof vested in or exercised by His Majesty's Principal Secretary of State for the War Department or to take away lessen prejudice or alter any of the rights privileges or powers vested in or exercised by the said Secretary of State without his previous consent signified in writing under his hand and which consent the said Secretary of State is hereby authorised to give subject to such special or other conditions as he shall see fit to impose on the Council. Saving
rights of His
Majesty's
Secretary of
State for
War Depart-
ment.

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(2) Where the reconstructed tramway shall pass any land or building vested in or under the control of the said Secretary of State no crossing passing-place siding or junction whether shown on the deposited plans or not and no other work not shown on the deposited plans opposite to such land or building shall be constructed until it shall have been approved by the said Secretary of State or by an officer acting on his behalf and if at any time it shall in the opinion of the said Secretary of State be desirable that such crossing passing-place siding junction or other work shall be altered or removed the Council shall alter or remove it to the satisfaction of the said Secretary of State within twenty-eight days from the time at which they are called upon to do so Provided always that the approval of the said Secretary of State shall not be unreasonably withheld and that the said Secretary of State shall not unreasonably call upon the Council to alter or remove any crossing passing-place siding junction or other work.

(3) The Council shall not permit any of their carriages to stop or stand upon the reconstructed tramway opposite or near to the entrance to any lands or buildings vested in or under the control of the said Secretary of State in such manner as to interfere with access to or from such lands or buildings.

For protec-
tion of
Great
Eastern
Railway
Company.

16. For the protection of the Great Eastern Railway Company (in this section referred to as "the company") the following provisions shall unless otherwise agreed between the Council and the company apply and have effect (that is to say):—

(1) In this section the word "apparatus" includes posts brackets electric wires conductors apparatus and any similar appliances to be used as or for the purposes of a motive power for the carriages running on the tramways and includes also any subways tunnels tubes openings excavations channels and pipes for the purposes of such apparatus and the word "bridge" shall include the structure covering any railway beneath a street:

(2) If the Council carry out the widening of Norton Folgate by this Act authorised they shall notwithstanding anything contained in this Act or shown on the deposited plans enter upon take and use so much only of the properties numbered on the said Plans 4

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and 7 in the metropolitan borough of Shoreditch as is shown by red colour on the plan signed by Sidney Arthur Parnwell on behalf of the company and by Andrew Young on behalf of the Council but except as aforesaid the Council shall not without the consent in writing of the company under their common seal enter upon take or use permanently any lands railways sidings or other property belonging to the company :

- (3) All works in connexion with the construction of Tramway No. 5 by this Act authorised (in this section referred to as "the said tramway") where any of the works will be made upon any bridge or other work belonging to the company or will otherwise affect the same shall be executed so as to interfere as little as possible with the structure of any such bridge or other work and according to plans sections and specifications to be previously submitted to and approved by the company or in case of difference between them and the Council to be determined by a referee to be appointed as herein-after provided All such works shall be executed and thereafter maintained according to the plans sections and specifications so approved or determined and under the superintendence and to the satisfaction of the company The Council shall so construct maintain and use the said works as not to injuriously affect any such bridge or other work and in the event of any injury being occasioned to such bridge or other work by the construction maintenance user or removal of the said tramway works and apparatus the company may make good the injury and may recover from the Council the reasonable expense of so doing :
- (4) The Council shall not in any manner in the execution maintenance user or removal of any of their works obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the company or any traffic thereon :
- (5) The Council shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of the

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works or property owned by them or to the traffic on such railways or to any company or person using the same by or by reason of the execution or failure of any of the intended works or apparatus or by or by reason of any act default or omission of the Council or of any person in their employ or of any contractors for the intended works or any part thereof and the Council shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :

- (6) Whenever and so often as the company shall require to widen strengthen reconstruct alter or repair lift or support any such bridge or other work belonging to the company upon which the said tramway is laid the Council shall afford to the company all reasonable and proper facilities for the purpose and if the company find it necessary for such purpose that the working or user of any part of the said tramway upon the bridge shall be wholly or in part stopped or delayed or that such part of the said tramway shall be wholly or in part taken up or removed and if the company accordingly give to the Council fourteen days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such part of the said tramway shall be stopped or delayed or such part of the said tramway shall be taken up or removed as stated in such notice at the reasonable expense of the Council and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purpose as aforesaid and such part of the said tramway shall be restored with all possible despatch and in any such case the company shall not be liable to pay compensation in respect of such stoppage or delay or taking up or removal as aforesaid Provided that if the said tramway is constructed as a double line the company shall not be at liberty to require more than one line of rails to be stopped at a time or if the said tramway

is constructed as a single line the company shall give to the Council all reasonable facilities for the construction and user of a temporary line to be laid for maintaining the tramway service: A.D. 1912.

- (7) In case the company shall be of opinion that any such strengthening reconstruction or alteration is rendered necessary owing to the carriages or other vehicles used on the said tramway being or intended to be moved by mechanical power (including electrical power) such strengthening reconstruction or alteration shall be effected at the expense of the Council who shall pay to the company any additional expense which they may reasonably incur in effecting any such strengthening reconstruction or alteration or any widening lengthening repairing lifting or supporting by reason of the existence of the said tramway or any of the works connected therewith:
- (8) No apparatus shall be affixed to any bridge or other property belonging to the company without their previous consent in writing which consent shall not be unreasonably withheld:
- (9) If and when the company shall require to reconstruct alter repair or paint any bridge upon which the said tramway is laid the Council shall in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from their apparatus for working the said tramway by electricity at such times as shall be reasonably required by the company unless the Council shall have previously adopted some other means of protection to workmen which shall have been approved by the company:
- (10) The Council shall not in working the said tramway obstruct or otherwise interfere with the entrances and exits opposite or nearly opposite Brushfield Street leading to and from the parcels offices belonging to the company in Bishopsgate:
- (11) If any difference shall arise under this section between the Council and the company the same shall unless otherwise agreed be determined by a referee in accordance with the provisions of section 33 of the Tramways Act 1870.

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For protec-
tion of Lon-
don and
South West-
ern Railway
Company.

17. The following provisions for the protection of the London and South Western Railway Company (in this section referred to as "the company") shall unless otherwise agreed between the Council and the company apply and have effect (that is to say):—

- (1) In this section the word "apparatus" includes posts brackets electric wires conductors apparatus and any similar appliances to be used as or for the purposes of a motive power for the carriages running on the tramway and includes also any subways tunnels tubes openings excavations channels and pipes for the purposes of such apparatus:
- (2) All works in connexion with Tramway No. 8 by this Act authorised (in this section referred to as "the said tramway") where the same shall be made under or in any way affect the bridge carrying the company's railway over South Lambeth Road (in this section referred to as "the said bridge") or other work belonging to the company shall be executed so as to interfere as little as possible with the structure of the said bridge or other work and according to plans sections and specifications to be previously submitted to and approved by the company or in case of difference between them and the Council to be determined by a referee to be appointed as hereinafter provided All such work shall be executed and thereafter maintained according to the plans sections and specifications so approved or determined and under the superintendence and to the satisfaction of the company The Council shall so construct maintain and use the said tramway works and apparatus as not to injuriously affect the said bridge or other work and in the event of any injury being occasioned to the said bridge or work by the construction maintenance user or removal of the said tramway works and apparatus under the same the company may make good the injury and may recover from the Council the reasonable expense of so doing:
- (3) The Council shall not without the consent in writing of the Company which shall not be unreasonably withheld construct the said tramway in any other position than that shown on the plan signed in

duplicate by Sir Luke White the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred (one copy of which plan has been deposited in the Private Bill Office of the House of Commons and one copy in the Office of the Clerk of the Parliaments in the House of Lords) and the Council may alter the position of the existing line of tramway to that shown on the said plan so as to enable the said tramway to be so constructed : A.D. 1912.

- (4) The Council shall on demand pay to the company the reasonable expense of lighting and watching the works of the company during the execution or repair by the Council under this Act of any work or apparatus affecting the said bridge or other work belonging to the company for the purpose of preventing interference obstruction danger and accident from any of the operations or from the acts or defaults of the Council or their contractors or any person in the employ of either of them or otherwise :
- (5) The Council shall not in any manner in the execution maintenance user or repair of any of their works or apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the company or any traffic thereon :
- (6) The Council shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of their works or property or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure of any of the intended works or apparatus or by or by reason of any act default or omission of the Council or of any person in their employ or of any contractors for the intended works or any part thereof and the Council shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :
- (7) If the company hereafter require to widen lengthen strengthen reconstruct alter repair lift or support the

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said bridge the Council shall afford to the company all reasonable and proper facilities for the purpose and if the company find it necessary for such purpose that the working or user of any part of the said tramway be wholly or in part stopped or delayed or that such part of the said tramway be wholly or in part taken up or removed and if the company accordingly give to the Council fourteen days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such part of the said tramway shall be stopped or delayed or such part of the said tramway shall be taken up or removed as stated in such notice at the reasonable expense of the Council and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purpose as aforesaid and such part of the said tramway shall be restored with all possible despatch and in such case the company shall not be liable to pay compensation in respect of such stoppage delay or taking up or removal as aforesaid. Provided that the company shall not be at liberty to require more than one line of rails under the said bridge to be stopped at a time:

- (8) The Council shall from time to time pay to the company any additional expense which the company may incur in effecting such widening lengthening strengthening reconstructing altering repairing lifting or supporting as is mentioned in the last preceding subsection or in the maintenance of the said bridge or other work of the company by reason of the existence or user of the said tramway or any of the works or apparatus connected therewith:
- (9) No apparatus shall be affixed to the said bridge or other property of the company without their consent in writing which consent shall not be unreasonably withheld:
- (10) In the event of the said tramway being worked by electricity on the overhead wire system the Council

shall if and when the company shall require to widen reconstruct alter repair or paint the said bridge under which any electric wire of the Council has been placed in order to ensure the safety of the workmen employed in such widening reconstruction alteration repairing or painting cut off the electric current from the trolley wires under the said bridge at such time as shall be reasonably required by the company unless the Council shall have previously adopted some other means of protection to workmen which shall have been approved by the company :

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- (11) If having regard to the proposed position of any of the works of the Council by this Act authorised when considered in relation to the position of the works of the company at any point where the said tramway will be constructed under the railway or other works of the company it becomes necessary that the electric telegraphic telephonic or signal wires or apparatus of the company shall be altered the company may after giving fourteen days' notice to the Council execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Council :
- (12) If any difference arises under this section between the Council and the company the same shall unless otherwise agreed be determined by a referee in accordance with the provisions of section 33 of the Tramways Act 1870.

PART III.

STREET WORKS.

18.—(i) Subject to the provisions of this Act the Council may in the lines or situation and within the limits of deviation shown on the deposited plans and according to the levels shown on the deposited sections make and execute the street improvements widenings and works herein-after described viz. :—

Power to
Council to
make street
works.

Widening at Norton Folgate.

A widening of Norton Folgate in the parish of St. Leonard Shoreditch in the metropolitan borough of Shoreditch on the

A.D. 1912. western side thereof between points respectively $\frac{1}{2}$ chain or thereabouts northward and $1\frac{1}{2}$ chains or thereabouts southward of Cock Alley.

Widenings at Bromley Road.

Widenings of Bromley Road in the parish and metropolitan borough of Lewisham:—

On the eastern side thereof—

(1) Between points respectively 5 chains or thereabouts and 16 chains or thereabouts southward of Bellingham Road:

(2) Between Whitefoot Lane and a point 4 chains or thereabouts northward thereof:

(3) Between points respectively 2 chains or thereabouts and 4 chains or thereabouts northward of Beckenham Lane:

On the western side thereof—

(1) Between points respectively $9\frac{1}{2}$ chains or thereabouts and $14\frac{1}{2}$ chains or thereabouts northward of Whitefoot Lane:

(2) Between points respectively 3 chains or thereabouts and 6 chains or thereabouts northward of Whitefoot Lane:

(3) Between points respectively 1 chain or thereabouts northward and 8 chains or thereabouts southward of Whitefoot Lane.

Widenings at Dock Yard Rails and High Street Woolwich.

A widening of Dock Yard Rails in the parish and metropolitan borough of Woolwich on the northern side thereof between a point 4 chains or thereabouts westward of the north-west corner of St. Mary's Churchyard and a point $3\frac{1}{2}$ chains or thereabouts westward of Parson's Hill.

Widenings of High Street Woolwich in the said parish of Woolwich on the northern side thereof:—

(1) Between the western end of the Grove and a point 2 chains or thereabouts westward of Glass Yard:

(2) Between Glass Yard and Nile Street.

Widenings at Green Lanes and Seven Sisters Road.

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A widening of Green Lanes in the parish of St. Mary Stoke Newington in the metropolitan borough of Stoke Newington on the western side thereof between Seven Sisters Road and a point $1\frac{1}{2}$ chains or thereabouts southward thereof.

A widening of Seven Sisters Road in the said parish of St. Mary Stoke Newington on the southern side thereof between Green Lanes and a point $1\frac{1}{2}$ chains or thereabouts westward thereof.

(ii) The Council may at the places mentioned or described in the Second Schedule to this Act increase the width of the carriageway of the several streets or roads therein mentioned by reducing the width of the footpath or footpaths at the side or sides thereof to the extent shown on the deposited plans but the Council shall not in exercising the powers of this subsection reduce the width of any footpath to less than six feet.

19. The provisions of the London County Council (Subways) Act 1893 shall extend and apply to any subway to be constructed under the powers of this Act as well during as after the construction thereof as if such subway had been included in the expression "subway" in the first-mentioned Act and all byelaws for the time being in force thereunder shall extend and apply to such subway :

Applying
provisions
of London
County
Council
(Subways)
Act 1893.

Provided that for the purposes of the application of the London County Council (Subways) Act 1893 to such subway the Metropolitan Water Board and the London Hydraulic Power Company shall be deemed to be water companies.

20. When and as each of the improvements or any part thereof is completed a certificate thereof shall be issued under the seal of the Council and any copy of such certificate certified under the hand of the clerk of the Council shall in all proceedings and for all purposes be admissible and received as evidence that such certificate has been duly made and from the date of such certificate so much of the improvement to which such certificate relates as shall have been laid out as carriageway or footway shall form part of the street and may be used by the public accordingly Subject to the provisions of this Act so much of the land acquired by the Council for any improvement as is thrown into and used for the carriageway or footway of any street shall on the completion of the improvement (subject to

Improve-
ments to
form public
streets
Repair &c.

A.D. 1912. the enjoyment by the council of the metropolitan borough in which the same is situate of all such rights in such lands as are usually enjoyed in respect of a street by the road authority) be and remain vested in the Council and the maintenance repair paving cleansing and lighting of so much of the improvement as has been laid out as aforesaid shall be under the care management control and jurisdiction of the council of the metropolitan borough in which such improvement is situate in the same manner as other streets in such borough:

Provided that the provisions of this section with reference to the repair of carriageway shall not apply to that part of any carriageway which under the provisions of the Tramways Act 1870 the Council are bound to keep in repair.

Contributions by councils of metropolitan boroughs.

21. The council of a metropolitan borough within whose area any of the improvements are situate may contribute towards the costs and expenses of the Council in relation to any of the improvements so situate such sums as the said borough council may by resolution determine and may subject in all respects to the provisions of sections 183 to 189 of the Metropolis Management Act 1855 as amended by any subsequent Act borrow the requisite moneys for the purposes of this section.

PART IV.

PURCHASE OF LANDS.

Power to Council to take lands.

22.—(1) Subject to the provisions of this Act the Council may enter upon take and use all or any of the lands shown on the deposited plans and described in the deposited book of reference which they may require for the purposes of the improvements or for providing space for the erection of houses and buildings adjoining or near to the improvements or for the purposes of recoupment or exchange or for other purposes of this Act.

(2) The powers of the Council for the purchase of lands by agreement shall be deemed to extend to and to authorise the purchase by the Council by agreement of any other lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be required by them for the purposes of or in connexion with the improvements.

23. In addition to the lands shown on the deposited plans and described in the deposited book of reference the Council may purchase by agreement in connexion with and for the purposes of the improvements any lands not exceeding in the whole five acres.

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Purchase of
lands by
agreement.

24. In settling any question of disputed purchase money or compensation under this Part of this Act the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the lands created after the twenty-fifth day of July one thousand nine hundred and eleven if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensa-
tion under
this Part of
Act in case
of recently
altered build-
ings.

25. The Council may in connexion with the improvements or otherwise in exercise of the powers of this Act take the parts of the several properties shown on the deposited plans and described in the deposited book of reference under the numbers stated in the Third Schedule to this Act which lie within the line marked "limits of deviation" or such part thereof as they may require without being required or compellable to purchase any greater part or the whole of any such property:

As to taking
of part of
certain pro-
perties.

Provided that this section shall not entitle the Council to take or interfere with the main structure of any house building or manufactory.

The provisions of this section shall be stated in every notice given thereunder by the Council to sell and convey any premises.

26. The powers of the Council for the compulsory purchase or taking of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Limitation of
time for pur-
chase of
lands.

PART V.

MISCELLANEOUS AND FINANCIAL.

27. If the works be not completed within the period of seven years from the passing of this Act then on the expiration of that period the powers of the Council under this Act for the

Period for
completion
of works.

A.D. 1912. execution of the same respectively shall cease except so far as the same shall then have been completed.

Incorporating certain provisions of London County Council (Tramways and Improvements) Acts 1901 1907 and 1911 with various Parts of Act.

28. The sections of the London County Council (Tramways and Improvements) Act 1901 the London County Council (Tramways and Improvements) Act 1907 and of the London County Council (Tramways and Improvements) Act 1911 of which the numbers and marginal notes are respectively set forth in the second and third columns of the Fourth Schedule to this Act are hereby incorporated with and form part of the Parts of this Act of which the numbers are respectively set opposite to the said sections in the first column of the said schedule and the said sections shall so far as applicable extend and apply to the works and to the lands by this Act authorised to be acquired by the Council and to the Council in respect thereof as fully and effectually as if such sections had been re-enacted in this Act with reference thereto:

Provided that for the purposes of the incorporated sections 48 and 49 of the said Act of 1901 the Metropolitan Water Board and the London Hydraulic Power Company shall be deemed to be water companies:

Provided further that in its application to the new tramways section 11 of the said Act of 1901 shall be read and construed as if the words "or by the Commissioner of Police of the Metropolis" had been inserted therein after the words "twenty inhabitant ratepayers of such district."

Power to use trailer and coupled carriages.

29.—(1) Notwithstanding anything to the contrary contained in any Act order byelaw or regulation the Council may provide maintain work and use trailer carriages and with the consent of the Board of Trade coupled carriages on such portions of any tramways worked by the Council—

- (a) south of the River Thames;
- (b) on the Victoria Embankment and Vauxhall Bridge Road and Beaufort Street up to King's Road Chelsea; and
- (c) over Westminster Blackfriars Vauxhall and Battersea Bridges respectively;

and at such times as the Board of Trade may approve and for such periods and on such terms and conditions as may be expressed in such approval and the Board of Trade may revoke any such approval Provided that the Council shall not in exercising

A.D. 1912.

the powers in this section contained obstruct or interfere with the free passage of persons or vehicles to or from the entrances to or exits from the stations of any railway company and trailer carriages or coupled carriages shall not without the consent of such company be stopped for the distance thereon extending in front of the said entrances or exits and for a length of ten yards at each end of such entrance except only for so long as shall be reasonably necessary for the purposes of discharging and taking up passengers.

(2) The trailer carriages and coupled carriages used by the Council under the provisions of this section shall be fitted with such brakes and safety appliances as the Board of Trade may approve and no trailer carriage or coupled carriage shall be used by the Council of a design not approved by the Board of Trade for the purpose.

(3) Except so far as the Board of Trade may otherwise allow the number of carriages or vehicles which may be used or run attached together in each case shall not exceed two.

30.—(1) The Council may make byelaws requiring persons waiting to enter carriages at any stopping place or terminus upon any of their tramways to wait in lines or queues and to enter such carriages in the order in which they stood in such line or queue and such byelaws shall be subject to the provisions of the Metropolis Management Act 1855 respecting the making confirmation approval publication and evidence of byelaws and proceedings before justices and recovery of penalties thereunder.

Power to require intending passengers to wait in lines or queues.

(2) Any byelaws made under the provisions of this section shall be enforced by the Council.

31. Notwithstanding anything contained in the section of this Act the marginal note whereof is "Power to require intending passengers to wait in lines or queues" or in any byelaws to be made thereunder the Council shall not require persons waiting to enter carriages at any stopping place or terminus upon any of their tramways to wait in any line or queue so as to interfere with or render less convenient the access to or exit from any station or depôt of the Great Northern Railway Company or of the London and South Western Railway Company.

For protection of Great Northern and South Western Railway Companies.

Any difference arising under this section shall be determined by an arbitrator to be agreed upon by the parties in difference or failing such agreement to be appointed by the Board of Trade on the application of either party.

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Applying
section 47 of
Tramways Act
1870 to certain
byelaws.

Money to
be raised
on capital
account.

32. The provisions of section 47 of the Tramways Act 1870 shall extend and apply to any byelaws made for the purposes of section 43 of the London County Council (Tramways and Improvements) Act 1911.

33.—(1) The Council may expend on capital account for the purposes of this Act such money as they may from time to time think fit not exceeding two hundred and thirty-eight thousand five hundred and sixty-five pounds and in order to raise or provide the money required for those purposes the Council may create and issue consolidated stock or resort to the Consolidated Loans Fund or otherwise raise money in accordance with the provisions of the Acts regulating the raising of money for capital purposes by the Council :

Provided that nothing in this Act shall authorise the borrowing and expenditure of any money on capital account after the thirtieth day of September one thousand nine hundred and thirteen.

(2) The Council in accordance with the provisions of the Acts relating to the raising and expenditure of money by the Council on capital account shall make provision for the redemption of stock or the repayment of money borrowed or expended on capital account for the purposes of this Act within such term not exceeding in any case sixty years as the Council with the consent of the Treasury may determine.

As to pay-
ments under
this Act.

34. All costs and expenses of the Council in the execution of this Act (except so far as they may be otherwise provided for by this or any other Act) shall be defrayed as payments for general or special county purposes within the meaning of the Local Government Act 1888 as the Council may decide and the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act shall be paid by the Council in like manner.

The SCHEDULES referred to in the foregoing Act. A.D. 1912.

FIRST SCHEDULE.

(Referred to in Section 10.)

PROVISIONS OF THE LONDON COUNTY TRAMWAYS (ELECTRICAL POWER) ACT 1900 INCORPORATED WITH PART II. OF THIS ACT.

Number of Section.	Marginal Note.
3	Use of electrical power.
4	Special provisions as to use of electrical power.
6	Power to construct and provide appliances.
7	Further provisions as to paving materials of roads.
9	Application of materials excavated in construction of works.
10	Alterations in streets &c.
11	Electrical power works subject to Tramways Act 1870.
12	Drainage and cleaning of rails and conduit.
13	Reference of certain questions to arbitration.
14	Posts &c. to be removed if user discontinued.
22	Agreements as to supply of electric energy.

SECOND SCHEDULE.

(Referred to in Section 18.)

DESCRIPTION OF PORTIONS OF STREETS OF WHICH CARRIAGEWAY IS TO BE WIDENED.

Name of Thoroughfare.	Parish.	Metropolitan Borough.	Side or Sides of Thoroughfare.	Description.
Bromley Road.	Lewisham	Lewisham	Western	Between points respectively 6 chains or thereabouts and 10 chains or thereabouts north-westward of White-foot Lane.
High Street Woolwich.	Woolwich	Woolwich	Northern	Between Bell Water Gate and a point 1 chain or thereabouts eastward thereof.

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THIRD SCHEDULE.
(Referred to in Section 25.)DESCRIPTION OF PROPERTIES OF WHICH PORTIONS ONLY ARE REQUIRED
TO BE TAKEN BY THE COUNCIL.

Improvement.	Metropolitan Borough.	Number on deposited Plans and in Book of Reference.	Description.
Widening at Norton Folgate.	Shoreditch	4	House shop forecourt area yard and outbuilding.
		5	Part of private street.
		6	House shop area yard and outbuildings.
		7	Warehouse.
		8	House forecourt passage and yard.
		9	Public-house skittle alley yard and outbuilding.
		10	House shop yard and outbuildings.
		11	House shop yard and outbuildings.
		6	Part of garden wall railings gates and part of roadway.
		10 11	Forecourt walls and gates.
		12	Forecourt and part of garden.
Widenings at Bromley Road.	Lewisham	13	Forecourt.
		14	House and forecourt.
		15 16 17 18 20	Forecourt.
		22	Part of yard walls and gates.
		23	House garden bridge yard and outbuildings.
		25	Forecourt wall railings and gates.
		26	Forecourt.
		27	Forecourt and pump.
		28	Forecourt.
		3	House offices forecourt stables lofts yard and outbuildings.
		6	Sheds.
Widenings at Dock Yard Rails and High Street.	Woolwich	19	House shop part of yard roadway gates and outbuildings.
		21	Graveyard gates railings and wall.
		1	Forecourt area walls and steps.
Widenings at Green Lanes and Sisters Road.	Stoke Newington.		

FOURTH SCHEDULE.

A.D. 1912.

(Referred to in Section 28.)

PROVISIONS OF THE LONDON COUNTY COUNCIL (TRAMWAYS AND
IMPROVEMENTS) ACT 1901 INCORPORATED WITH THIS ACT.

Part of Act to which incorporated Sections apply.	Number of Section incorporated.	Marginal Note.
II.	7	Tramways not to be opened until certified by Board of Trade.
	8	As to rails of tramways.
	9	Rails to be maintained on level of roadway.
	10	Saving rights of access to sewers.
	11	Penalty for not maintaining rails and roads in good condition and inspection of tramways.
	14	Use of tramways by road authorities for certain local purposes.
	15	Certain powers of breaking up tramways for laying electric lines extended to widened tramways.
	17	Power to Council to work tramways.
	19	For protection of Postmaster-General (except subsection (5) of paragraph (B) of that section).
	22	Provision against interference with tramways.
III.	29	Streets may be raised or lowered.
	30	Deviation from line and levels.
	32	Carriageway footway sewers and other works.
	33	Directing how pavement shall be laid and made.
	34	Sewers or drains to be arched over or filled up.
	35	Power to alter steps areas pipes &c.
	38	Power to sell materials.
IV.	41	Power to certain persons to grant easements &c. by agreement.
	42	Correction of errors &c. in deposited plans and book of reference.
	43	Power to Council to enter upon property for survey and valuation.
	44	Costs of arbitration &c. in certain cases.
II. and III.	48	Alteration of position of water gas and other pipes.
	49	For protection of gas and water companies.
III.	50	Alteration of electric lines.
	52	Power to lease surplus lands.
IV.	54	Council may sell land in the first instance without having previously granted a lease thereof.
	55	Council may let or exchange lands.
	57	Receipts of Council to be effectual discharges.
	58	Power to Council to make agreements with owners of property &c.
III.	62	Removal of human remains from burial grounds.
	66	Agreements for closing accounts in cases of joint works.
II.	68	Separate account of receipts and payments relating to tramways.

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FOURTH SCHEDULE—continued.

PROVISIONS OF THE LONDON COUNTY COUNCIL (TRAMWAYS AND
IMPROVEMENTS) ACT 1907 INCORPORATED WITH THIS ACT.

Part of Act to which incorporated Sections apply.	Number of Section incorporated.	Marginal Note.
II.	{ 12	Application of section 32 of Tramways Act 1870.
	{ 14	Power to make additional crossovers and to double tramway lines.
II. and III.	{ 17	Power to Postmaster-General in relation to posts &c.
IV.	{ 21	Power to make subsidiary works stop up streets &c.
II.	{ 32	Council to dispose of lands within a certain period.
	{ 33	As to sale of ground rents.
II.	{ 37	Amending section 12 of London County Tramways (Electrical Power) Act 1900.
II. III. and IV.	40	Power to stop up ways temporarily.

PROVISION OF THE LONDON COUNTY COUNCIL (TRAMWAYS AND
IMPROVEMENTS) ACT 1911 INCORPORATED WITH THIS ACT.

Part of Act to which incorporated Section applies.	Number of Section incorporated.	Marginal Note.
II.	11	For protection of Royal Observatory Greenwich.

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